

Court No. - 39

Case :- WRIT - C No. - 9000 of 2021

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Kamlesh Kumar Tiwari

Counsel for Respondent :- C.S.C., Amit Krishna, Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

Copy of the written instructions submitted by Sri Rakesh Kumar Tripathi, holding brief of Sri Narendra Kumar Tiwari, learned counsel for the respondent nos.2 & 3 is taken on record.

A categorical stand has been taken by the petitioner that no notice or opportunity, as required under Clause 8.1(a) & (b) of the Electricity Supply Code, 2005 had been given to the petitioner before making final assessment on the allegations of theft of electricity. The compounding fee was intimated to the petitioner but the provisional assessment order had never been served.

In view of the above, as prayed by learned counsel for the respondent nos.2 & 3, two weeks' time is granted to place the material to intimate as to whether opportunity of hearing had been granted to the petitioner on the assessment of his civil liability or not.

Put up this case as fresh on 06.04.2021.

Order Date :- 18.3.2021

P Kesari

Court No. - 9

Case :- WRIT - C No. - 9000 of 2021

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Kamlesh Kumar Tiwari

Counsel for Respondent :- C.S.C., Amit Krishna, Narendra Kumar Tiwari

Hon'ble Sanjay Yadav, Acting Chief Justice

Hon'ble Ajay Bhanot, J.

The matter is taken up through Video Conferencing.

Ms. Rishu Mishra, learned counsel appears on behalf of respondent nos. 2 & 3.

Further 15 days' time is granted to the respondent nos. 2 & 3 to comply the order dated 18.03.2021.

List in week commencing 5th July, 2021, as fresh.

It is made clear that still if the order is not complied with by respondent nos. 2 & 3 the Court would be constrained to impose cost on the said respondents.

Office is directed to reflect the name of Ms. Rishu Mishra as counsel for respondents in the cause list.

Order Date :- 6.5.2021

N Tiwari

(Ajay Bhanot, J.) (Sanjay Yadav, ACJ)

Court No. - 40

Case :- WRIT - C No. - 9000 of 2021

Petitioner :- Gauri Shankar Gupta

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Kamlesh Kumar Tiwari

Counsel for Respondent :- C.S.C., Amit Krishna, Narendra Kumar Tiwari, Rishu Mishra

Hon'ble Manoj Misra, J.

Hon'ble Dinesh Pathak, J.

We have heard Sri Manoj Kumar Singh holding brief of Sri Kamlesh Kumar Tiwari for the petitioner; the learned Standing Counsel for the respondents 1, 4 and 5; and Ms. Rishu Mishra for the respondents 2 and 3.

The petitioner seeks quashing of the recovery order dated 11.12.2017 issued under the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 (for short Act, 1958) demanding Rs.908236/- and the recovery citation dated 26.12.2019 seeking to recover the demanded amount from the petitioner.

The petitioner had an electricity supply connection of 5 H.P. for running a pumping set. On 22nd July, 2017, an FIR was lodged against him alleging that he had been using the power supply for commercial purposes and thereby committed an offence punishable under section 135 of the Electricity Act, 2003. The recovery order reflects that a demand notice dated 24.08.2017 under section 3 of the Act, 1958 was sent to the petitioner. The case of the petitioner is that he has not been served notice dated 24.08.2017; that petitioner has not received any notice from Vidyut Vitaran Khand, Khudiram, Gorakhpur (the supply division); and that the third respondent (The Executive Engineer of the supply division) provided him no opportunity of hearing.

After considering the submissions of the learned counsel for the petitioner, on 18.03.2021, following order was passed:-

"Copy of the written instructions submitted by Sri Rakesh Kumar Tripathi, holding brief of Sri Narendra Kumar Tiwari, learned counsel for the respondent nos.2 & 3 is taken on record.

A categorical stand has been taken by the petitioner that no notice or opportunity, as required under Clause 8.1(a) & (b) of the Electricity Supply Code, 2005 had been given to the petitioner before making final assessment on the allegations of theft of electricity. The compounding fee was intimated to the petitioner but the provisional assessment order had never been served.

In view of the above, as prayed by learned counsel for the respondent nos.2 & 3, two weeks' time is granted to place the material to intimate as to whether opportunity of hearing had been granted to the petitioner on the assessment of his civil liability or not.

Put up this case as fresh on 06.04.2021. "

Pursuant to the said order, a counter-affidavit has been filed by Miss. Rishu Mishra on behalf of Vidyut Vitaran Khand IInd, Kaudiram, Gorakhpur through its Executive Engineer/Prescribed Authority. In the counter-affidavit, the department has sought to justify the recovery by stating that the petitioner has unauthorisedly used supply connection for commercial purposes when it was for a tubewell but the counter-affidavit does not disclose whether assessment

proceedings were finalised after giving opportunity of hearing to the petitioner though it is claimed in the counter-affidavit that a demand notice dated 24.08.2017 was sent to which no reply was submitted. But neither the mode of dispatch of the demand notice is disclosed nor it is disclosed as to when it was served despite the fact that there is a specific stand of the petitioner to the effect that no notice was served. The counter affidavit however states that the petitioner has an alternative remedy to challenge the impugned order under Section 127 of the Electricity Act, 2003 (for short Act, 2003).

Having perused the stand taken in the counter-affidavit, we find that that counter-affidavit, despite specific order of this court dated 18.03.2021, extracted above, has failed to demonstrate that the demand notice was served upon the petitioner; and that an assessment proceeding was carried out as per the provisions of the U.P. Electricity Code, 2005 read with Section 126 of the Act, 2003. It may be observed that Section 126 of the Act, 2003 provides for a detailed procedure to be followed for making assessment in electricity theft cases. Only when a proper assessment is made, an appeal lies against the assessment order under Section 127. Noticeably no assessment order has placed on record through counter affidavit. It is only when there is an order of assessment and the demand raised thereunder is not discharged recourse can be had to the provisions of the Act, 1958. As the counter affidavit, despite specific order of this court, fails to demonstrate that a proper assessment proceeding was undertaken, the demand and the consequential recovery cannot be sustained.

The writ petition is, therefore, **allowed**. The recovery order dated 11.12.2017 and the recovery citation dated 26.12.2019 are hereby quashed. The respondents 2 and 3 are

at liberty to make an assessment against the petitioner on allegation of electricity theft in accordance with the law, after giving opportunity of hearing to the petitioner, and raise demand and undertake consequential recovery proceeding, if required, in accordance with the law.

Order Date :- 5.7.2021

Sunil Kr Tiwari